

Number	Paragraph / Page / attachment reference	Potential Offeror Comments/ Questions	USPTO Response
1	N/A	Are the five personnel described in the PWS all expected to be full-time equivalent?	The staff dedicated to the project by the company should have their hours appropriately allocated to the project so that it is able to be completed within the first year.
2	N/A	Is the Contract Manager noted on PWS pg. 4 "Management and Supervision of Contractor Employees" different from the Project Manager described in "Performance Labor Categories"?	They are the same role, there was just different verbiage used for those sections of the PWS.
3	N/A	Will the Government provide a draft Quality Assurance Review Report (QARR) to ensure that our solutions are aligned with expectations?	The government understands that the question is seeking information regarding checklists or PWS that allows for the tracking or comparison between expectations and solutions. If correct, this is something that will be provided upon release of the solicitation.
4	N/A	Volume of Business Units: The PWS mentions assisting "appropriate Business Units" in maintaining their specific COOP plans and rosters. How many distinct Business Units are currently within the scope of this requirement?	The Emergency Management Branch has separated the Business Units into 10 distinct areas. Of those 10, it is anticipated that no more than 3 will be directly related to the scope of this requirement.
5	N/A	Existing Documentation: Objective 1 involves gathering and analyzing current documentation. What is the current maturity level of the existing COOP plans? Are there existing templates for the Business Process Analysis (BPA) and Business Impact Analysis (BIA)?	Templates are available, a MEF revision is in process which will require an entirely new BPA/BIA based on that revision.
6	N/A	How many tests and what scopes are to be planned for; tabletop exercises, functional, full, etc.?	The COOP program plans on conducting approximately 4 - 6 tabletops per year, with 1 functional or full scale exercise every other year.
7	N/A	Is the plan to keep the current Emergency Notification System?	The current Emergency Notification System will remain in place.
8	N/A	Specific Directives: The PWS requires alignment with "recently updated Federal Continuity Directives". Which specific versions or circulars (e.g., FCD 1 or FCD 2) are the primary focus for this revision?	Federal Continuity Directive: Federal Executive Branch Continuity Program Management Requirements (2024), Federal Continuity Directive: Federal Executive Branch Essential Functions Risk Identification and Management (2024), Federal Mission Resilience Strategy (2020) - FCD 1 and FCD 2 (2017) have been rescinded have been superseded by the 2024/2020 documents.
9	N/A	Labor Category Clarification: The "Purpose" section requests four specialists and one supervisor, while the "Performance Labor Categories" list one Project Manager and four SMEs. Do "Project Manager" and "Supervisor" refer to the same role/individual?	Project Manager and Supervisor do refer to the same role. The supervisor can act as the project manager.
10	N/A	Who currently is responsible for the Occupant Emergency Plan (OEP); Federal Protective Services, a third party such as a commercial building management company, etc.?	The USPTO Emergency Management Branch is responsible for the OEP.
11	N/A	Regional Travel: While the primary place of performance is Alexandria, VA, the PWS identifies six distinct facilities, including regional offices in Detroit, Dallas, and San Jose. Since the contractor is responsible for travel costs to ensure a "nationwide presence." What is the expected frequency of travel to these regional offices?	The primary place of performance is Alexandria and there is no travel to the Regional Offices anticipated during this contract. These were mentioned to provide context as to the scope of the project.
12	N/A	Remote Work Frequency: The PWS allows for remote work on a "case-by-case basis" with approval. What is the anticipated percentage of on-site versus remote work for the SMEs under normal operating conditions?	USPTO believes the majority of work can be completed while remote with the occasional (anticipated 1 x every 2-3 months) onsite meeting. Unless the project dictates otherwise.
13	N/A	Government-Unique Systems: The USPTO will provide training on "government-unique systems" and "USPTO databases". Which specific software platforms (e.g., automated COOP planning tools) will the contractor be required to use and maintain?	USPTO's intranet, COOP files, SharePoint sites, and Everbridge will be the main platforms that work will be performed on.
14	PWS Page 4	What is the expected level of effort (hours/FTE allocation) for the 4 SMEs and Project Manager? Is the requirement full-time support for the entire period of performance, or task-order driven/variable?	The level of effort will be based on the project outline that the company provides that hits all goals within the 1 year timeframe allotted to complete the project. As long as milestones and the final project are completed to standard on time then the allocation of time is left to the SME's and PM.
15	PWS Page 1	How many workshops/interviews are anticipated for BPA/BIA and MEF validation activities?	Each portion will require different levels of workshops/interviews/meetings. The MEF revision is already underway, this can be completed in 2-4 meetings/workshops. The BPA will likely require the most workshops/interviews/meetings and will be dependent on the outcome of the MEF validation (anticipated to be a minimum of 10) while the BIA will likely require minimal meetings/workshops (approximately 5).
16	PWS Page 1	Has USPTO already conducted any preliminary gap analysis against the updated directives?	A full gap analysis has not been completed against the updated directives.
17	PWS Page 2	What types of exercises are expected (tabletop, functional, full-scale)?	Mainly tabletop's with the occasional functional exercise
18	PWS Page 2	How frequently should TT&E activities occur during the base period?	TT&E during the base period will be solely planning. The contractor is not expected to facilitate any exercises while in this contract.

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19	PWS Page 2	What is the maturity level of the existing COOP program (e.g., partially compliant, outdated, fragmented)? Are there known deficiencies or audit findings that must be addressed?	Outdated, MEF needs revision
20	PWS Page 3	What level of support is required for regional offices vs. headquarters? Will site visits be required at all listed locations (Detroit, Dallas, San Jose)?	Site visits will not be required, the current COOP manager is located in Detroit and will support the efforts of this contract primarily from there. Beyond that there will be no requirements to visit any other sites besides headquarters during this contract.
21	PWS Page 4	What percentage of work is expected to be on-site vs. remote?	USPTO believes the majority of work can be completed while remote with the occasional (anticipated 1 x every 2-3 months) onsite meeting. Unless the project dictates otherwise.
22	PWS Page 2	Will contractors handle classified or Controlled Unclassified Information (CUI)?	Contractors will handle information that is CUI, nothing above that will be handled during this contract.
23	PWS - Purpose and Scope; Continuity of Operations (COOP) – Performance Elements	Can USPTO confirm which specific 2024 Federal Continuity Directives (e.g., FCD-1, FCD-2, and related guidance) and any DOC/USPTO-specific continuity policies, standards, or templates will govern this effort and be provided at or shortly after award?	Federal Continuity Directive: Federal Executive Branch Continuity Program Management Requirements (2024), Federal Continuity Directive: Federal Executive Branch Essential Functions Risk Identification and Management (2024), Federal Mission Resilience Strategy (2020) will be provided as well as USPTO's current COOP plan, current MEF revision documentation, and BPA/BIA templates will be provided.
24	PWS - Continuity of Operations Support – Major Activities	Will USPTO provide the current enterprise COOP plan, annexes (including any devolution materials), existing MEF/PMEF lists, prior BIAs/BPAs, and any recent audit/inspection findings related to continuity for use as inputs to the gap analysis and COOP plan modernization?	USPTO will provide all current COOP Plan information to include annexes (devolution, AOFs, DOA/OOS, Pandemic etc.) Upon contract award, the USPTO's Emergency Management Branch will provide the company with an extensive briefing to detail the current state of the COOP program to include a gap analysis based on FCD-1 and FCD-2.
25	PWS - Purpose and Scope; Continuity of Operations Support – Major Activities (esp. items 4 and 5)	Is the contractor expected to deliver (a) a single enterprise COOP plan with annexes for each campus/Regional Office, or (b) separate stand-alone plans for each facility and/or Business Unit; and approximately how many Business Units and critical business processes are in scope for BPA/BIA workshops and interviews?	The contractor is expected to deliver a single COOP plan for USPTO that incorporates all regional offices into the Continuity Planning Framework. Annexes do not need to be established for each regional office and stand alone plans for each facility and/or business unit is not needed. The COOP plan is for the sustainment of USPTO's essential functions under all conditions which specific B.U.s will support once identified in the MEF ID/BPA process.
26	PWS - Continuity of Operations (COOP) – Performance Elements; Continuity of Operations Support – Major Activities	The PWS references both “validate or revise” MEFs and “validate or conduct a MEF identification.” Does USPTO anticipate primarily validating and refining an existing set of MEFs/PMEFs and associated supporting activities, or conducting a more comprehensive re-identification effort from the ground up?	The current MEF needs to be revised to more accurately reflect critical areas of USPTO's operations. The Emergency Management Branch has established candidate MEF's and is currently writing a proposal based on feedback from General Counsel. This information will all be provided upon award of the contract.
27	PWS - Continuity of Operations (COOP) – Performance Elements	For the TT&E program, what is the desired end-state by the end of the base period (e.g., minimum annual number and type of exercises, documentation set), and does USPTO expect the contractor to (a) design the TT&E program and associated requirements only, or also (b) plan, facilitate, and document one or more specific exercises (including AAR/IPs) during the period of performance?	The expectation is that this will only be design the TT&E program and associated requirements only. The contractor will not be asked to facilitate any exercises during this contract.
28	PWS - Performance Labor Categories; General Labor Requirements	The PWS identifies one Project Manager and four COOP Subject Matter Experts. Should offerors assume these positions will be staffed full-time (40 productive hours per week) for the full base period, or does USPTO anticipate any ramp-up/down or varying level of effort across the tasks that offerors should reflect in their technical and pricing approaches?	The USPTO anticipates the company to ramp-up/down with varying levels of effort across the tasks and offerors should reflect that in their technical and pricing approaches. The focus is the completion of the task to standard in the time allotted in the contract. The company has the flexibility to allocate time towards the project dependent on the status of each milestone.
29	PWS - Performance Labor Categories; Training	Does USPTO plan to specify any minimum qualifications or preferred certifications for the Project Manager and COOP SMEs (e.g., CEM, CBCP/MBCP, FEMA Professional Development Series, Master Exercise Practitioner, ICS-300/400), and if so, can those be shared?	It is preferred that this role is filled by someone who is a COOP SME, CEM, or Continuity Excellence Series - Level 1 and has extensive knowledge of FCDs released in 2024. Not required but preferred.
30	PWS - Place and Period of Performance	While the PWS identifies Alexandria Headquarters as the primary place of performance and allows remote work with approval, what is USPTO's anticipated baseline expectation for on-site presence at HQ (e.g., typical days per week per position), and to what extent does USPTO anticipate in-person workshops/assessments or exercises at the Detroit, Dallas, and San Jose Regional Offices for planning and pricing purposes?	USPTO believes the majority of work can be completed while remote with the occasional (anticipated 1 x every 2-3 months) onsite meeting. Unless the project dictates otherwise.
31	PWS - Productive Labor Hour; Non-Productive Hours	For purposes of pricing and level-of-effort planning, should offerors assume 2,080 productive hours per FTE per year?	Offerors do not need to assume that every employee involved in the contract will spend 2080 hrs. on the project. Hours can be broken down by the amount of time employees are to spend on specific aspects of the contract.

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32	PWS - Travel	Since the PWS states that travel is generally not reimbursed and should be covered within fully burdened labor rates, will the solicitation provide any notional travel assumptions (e.g., approximate number, duration, and locations of trips) that offerors should use so that proposed pricing can be evaluated on a similar basis?	Travel is not expected to be a part of this contract. The work will be completed either remotely or through meetings at headquarters.
33	PWS - Continuity of Operations (COOP) – Performance Elements; Continuity of Operations Support – Major Activities	For the Business Process Analysis / Business Impact Analysis requirement, does USPTO prefer that we execute (a) a distinct BPA followed by a separate BIA, or (b) a combined methodology; and does USPTO have required or preferred formats/templates (e.g., aligned to FCD-2 annexes) that the contractor should use?	The usual practice is that there is a distinct Business Process Analysis followed by a separate BIA however, is open to a combined methodology if it fits within the parameters of the project and is effective in planning efforts. Templates will be supplied that mirror the FCD -2 BPA/BIA guidance.
34	N/A	The RFI calls for 4 emergency management specialists and 1 supervisor to support this work for 13 months. We have completed COOP plans for organizations for over 20 years and believe we can complete this scope of work with fewer staff. Would it be appropriate to discuss this in the initial response?	Yes, it is appropriate. One of the intents from this RFI is, based on the responses, to develop the requirement and subsequent solicitation more fully
35	N/A	The RFI requires the work to be primarily onsite. We have been supporting COOP planning virtually since COVID and have found that this is a much more cost-effective approach for our clients. In this case, this scope of work will not require 40 hours per week from 4-5 individual staff members. We would propose attending major meetings in person, and conducting the majority of the work from our offices using only the hours necessary. Is USPTO open to this approach? Or are there guidelines in place that require onsite reporting?	USPTO believes the majority of work can be completed while remote with the occasional (anticipated 1 x every 2-3 months) onsite meeting. Unless the project dictates otherwise.
36	N/A	If we are willing to obtain the public trust designation for our staff who would support this effort, can we obtain that after being awarded a contract? Or, do the proposed individuals need to have a public trust designation before submitting a formal proposal (if we are chosen to submit one).	All Contractors must be registered in SAM prior to any award. Any personnel needing badging or approval to come on-site will be screened by USPTO security after award.
37	N/A	Is there a page limit to the response for this Sources Sought Notice?	This is a sources sought (RFI) for market research (NOT a solicitation) so there is no page limits, formatting, etc. (but use good judgement and common sense) Please provide well-organized and compelling information which casts your company in the best possible light and shows that you can meet the requirement.
38	N/A	Has funding been obligated for the Base Period of performance?	This is a sources sought notice. Funding will be obligated prior to award.
39	N/A	Does the Government expect to include Option Years beyond the Base Period of Performance as part of the procurement?	No.
40	N/A	The PWS indicates that this requirement uses labor effort based on productive labor hours. Does the Government intend to make this opportunity a Time and Materials based contract? Is the Government open to alternative contract types (e.g., Firm Fixed Price)?	The government anticipates this will be a labor hr contract with pre-negotiated, firm-fixed hourly rates. It will not be a time and materials contract.
41	N/A	Will the Government provide minimum requirements for the one (1) Project Manager and four (4) Continuity of Operations Subject Matter Experts to support more accurate RFI responses?	No. Interested parties may demonstrate their relevant experience in their response materials.
42	N/A	Several paragraphs in the draft PWS mention "Call Orders." Does the Government intend to execute a BPA for this opportunity with one or more Call Orders issued to fulfill requirements? If yes, is the BPA intended to be a single award or multi-award BPA?	Those are typos, this is for a one year single award - and it will not be a Blanket Purchase Agreement (BPA).
43	N/A	Incumbency: The PWS mentions that the contractor is "encouraged to engage incumbent service employees". Is there a current incumbent performing these services, and if so, please provide the incumbent information including the current contract number?	No, there is not an incumbent performing this work; those references will be removed.
44	N/A	Due to the nature of the support, is there potential for Organizational Conflict of Interest (OCI) for future contracts related to COOP/Emergency Management preparedness and/or implementation?	Future OCI issues are unknown.
45	PWS Page 1	What specific criteria will USPTO use to determine which vendors are "most likely to successfully meet the agency's needs" for PTAG down-select?	The RFI is a market research document and respondents are asked to demonstrate their experience and expertise in those tasks. The more comprehensive and compelling your response, the better USPTO will be able to determine if your firm could meet the agency's needs if provided an RFQ to respond to.

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46	N/A	Will there be a formal evaluation rubric (e.g., weighting for past performance, staffing, methodology)?	Yes, during the solicitation process.
47	N/A	Are small businesses or specific socio-economic categories being prioritized or set aside?	One purpose of the RFI process is to determine what firms are in the market to help make these types of assessments prior to the solicitation.
48	N/A	Is there an incumbent contractor currently performing this work? If so, will transition support or knowledge transfer be provided?	No, there is not an incumbent performing this work; those references will be removed.
49	PWS - Productive Labor Hour; Non-Productive Hours; Quality Assurance Surveillance Plan	What contract type does USPTO anticipate for this requirement (e.g., Labor-Hour, Time-and-Materials, Firm Fixed Price), and will USPTO provide any target or notional level of effort by labor category (Project Manager and COOP SMEs) to support development of comparable pricing approaches?	The government anticipates this will be a labor hr contract with pre-negotiated, firm-fixed hourly rates. It will not be a time and materials contract.
50	RFI - PTAG section ("The Government contemplates utilizing the Alternative Competition Method...")	Under the PTAG Alternative Competition Method, can USPTO provide any additional insight into the high-level factors it will consider when determining which respondents to this RFI are most likely to successfully meet the requirement and thus be invited to compete (e.g., depth of federal COOP/FCD experience, similarity of past performance, staffing approach)?	The RFI is a Market Research document and respondents are asked to demonstrate their experience and expertise in those tasks. The more comprehensive and compelling your response, the better USPTO will be able to determine if your firm could successfully meet the agency's needs if provided an RFQ to respond to.